Chapter 2

Mannual- I

Under clause – Clause (4) (1) (b) (i) of Chapter II of the Right to Information Act, 2005

The particulars of organization, functions & duties of the Department :

All the activities of the Department are performed under the provisions in the Chapter VIII of the Mumbai Municipal Corporation Act, 1888.

Property Taxes and Octroi are the main sources of the revenue of the Corporation. About 60% of Municipal Revenue is yielded by the said sources. Collection of said taxes is made by the Department. It would not be worthless to say that the Department is the Major Pillar of Municipal Finance as the Corporation has to carry out all its project works through it.

The Head of the Department is designated as Assessor & Collector and there are three main branches of the Department as stated below :-

(1) Assessment & Collection,
(2) Octroi, (Cancelled from 01, july 2017)
(3) Election Branch.

All these branches are working under overall control of Assessor & Collector. Assessment & Collection, Octroi and Election branch are placed under the control of Assessor & Collector.

(1) Assessment & Collection Branch:

Assessment & Collection branch is divided into three main Zones, namely City, Western Suburbs and Eastern Suburbs and each zone is headed by each Dy. Assessor & Collector. In addition to this, Computerization work related to the Department is under the control of the Dy. Assessor and & Collector (Computer).

At Zonal Offices, there are various sections, viz. Establishment, Expenditure, Cash/Accounts, Legal, Transfer, Theatre Tax, Survey Section, Typing Section and work of these Sections is carried out by the Officers, Employees in various cadres such as Legal Officers, Administrative Officers, Head Clerks, Surveyors, Stenos, Clerks, Peons, etc.

At Administrative Ward level, Assistant Assessor & Collector is the overall In-charge of the Ward. There are two sections in each administrative Ward, viz. Indoor & Outdoor. Ward Superintendent is the In-charge of and responsible for Outdoor Section and Dy. Superintendents, Ward Inspectors, and Clerks related to the outdoor work etc. are working under his Control. The administrative area of the Ward is divided into various sub-sections (Known as Ward Sections). Ward Inspector is responsible for the Ward Section allotted to him. All the Ward Sections are divided in 2-3 groups for supervision and control of the work of Ward Inspectors by the Superintendent and Deputy Superintendents.

In Indoor Section, staff consisting of Head Clerks, Clerks are working under the control, supervision and guidance of the Assistant Assessor & Collector of the Ward. Assistant Assessor & Collector of the Ward is responsible for all the activities, functions, performance related to the work of the indoor section in particular and outdoor work in general.

Other than the 24 administrative Wards, following Individual Sections are in operation

(1) Vigilance Branch

(2) Computer Cell

(3) Maharashtra Tax on Buildings Section

(4) Government, Port Trust, Railway Section (GPR)

(5) Wheel Tax Section

(6) Appeal Section (Court Cases)

(7) Theatre Tax Section

(8) Repair Cess

(9) Statistics Section

(10) Expenditure section

(11) Enquiry Section

(12) Survey section

(13) New Tax Cell (This cell is closed w.e.f. 03.08.2017)

(1) Department A. A. & C.Vigilance Branch-

The Vigilance Branch of this Department is headed by the Dy.Assessor& Collector (H.O.) comprises Asst. A.&C., Superintendents, Dy.Superintendents and Ward Inspectors. They perform their duties for surprise, random checking of the property and reports regarding changes warranting revision in Ratable Value/Capital Value, if found.

The concerned Asst. A.&C. acts for such revision in Ratable Value/Capital Value by reporting the property proposals in system.

Also this Branch studies and reports the complaints received by higher authorities. Staff of Vigilance department tries to increase the maximum Municipal Revenue.

(2) **Computer Section** –

As per MMC Act, 1888 sec 200(1) property tax bills, sec 144 GPR bills and as per MHADA Act repair cess bills are generated by computer section. The Computer Cell also monitors the work of issuing bills, bill books (indoor, Outdoor), UCP, Issue Advice, Annexure of Property Tax, Repair Cess, G.P.R. & get them printed through Municipal Printing Press, Further after going through the output furnished by vendor appointed viz. M/s Vidarbhainfotech Pvt. Ltd., printing & Dispatching job is monitored by computer section. Furthermore, the demand & amended demand so generated, is furnished to C.A for uploading in SAP. Moreover, the collection of MTOB tax from 24 wards is consolidated and report is sent to CA Department to remit the Government taxes to the Government treasury.

Before 01.04.2007 this work was decentralized and was done at ward level. From 01.04.2007 all activities of collection for Assessment & Collection Department are done through SAP system. For this purpose, computer section has collected all required data in respect of all revenue heads from all 24 wards

and provided the master data and OSM data to M/s Vidarbha infotech Pvt. Ltd, the agency of Municipal Corporation of Greater Mumbai.

The below mentioned works are being carried out by this department

1. Module Development Changes, enhancements in the programming work.

   Co-ordination with the vendor of software development.
2. Call logs for corrections in the programming work
3. Implementation of GIS.
4. Implementation of 360 degree for survey of property.
5. The issues related to A & C and CA department to provide the facility of Online payment to taxpayers.
6. The work related to Capital value property tax system received from SRO office/Maharashtra Government or any other government offices.
7. Implementation and monitoring of SAS system. To arrange the training of SAS system to the employees of A & C department. To study and prepare the report form as per requirement of the department.
8. Monitoring of IPVS (Integrated property Validation System) project.

   MCGM has undertaken the project known as IPVS (Integrated Property Validation System) whereby the survey of the properties is been carried out with the help of LIDAR technology, vehicle mounted Cameras & Scanners are used. A satellite imaginary of Mumbai City is procured and the data collected by the above said survey linked with G.I.S. Map (Geographical Information System).

   Neither proposals, Nasti files nor any Sanctioned proposals, are preserved in computer section.

(3) <u>Maharashtra Tax on Buildings Section</u>-

1. M.T.O.B. Act: Maharashtra Tax on Buildings (With Larger Residential Premises) Maharashtra Act No.29 of 1979.
2. The term,Larger residential premises means the premises having floorage exceeding 125 sq. meters and the Ratable Value of which is more than Rupees one thousand and five hundred.
3. Residential premises: This means any building or part thereof used on intended for independent use for residential purpose.
4. Floorage: Means the total floor area of the premises excluding thickness of walls (i.e. carpet area).
5. Garages or quarters intended for the use of servants and used as such by them are excluded from the levy.
6. Objective of the Act is that— There should be a check on extravagant use of available living space.

Though the appropriate amendments into Maharashtra Tax on Large Building act 1977 have been done by the state government in the context of capital value, notification in respect of thetax rate at which the said tax is to be levied is not yet published by them. As a result the bills for the said tax have not been issued since 2010-11.

(4) Government, Port Trust, Railway Section(G.P.R.) -

Government, Port Trust & Railways Branch of the Department comprising of Superintendents, Deputy Superintendents, Ward Inspectors, Head Clerk & clerks, Peons is functioning under the control of Assistant Assessor & Collector for assessment of the Central & State Government & Railways properties and collection of a sum called as Service Charges in lieu of Property Taxes from the concerned authorities, as provided vide provisions of Section 144(1) (2) (2a) (3) in respect of properties entitled for exemption U/s 143(b) of MCGM Act 1888.

Similarly, under clause (1) of article 285 of the Constitution of India, the properties vested in the Central / State Government are exempted from the Property Taxes. However, the Central Government has decided to pay the Service Charges in lieu of the Property Taxes for the services provided by the Corporation. The Central Government has issued, from time to time the various circulars for guidance/clarification in this behalf. The set of such circulars is attached at Manual I

The rates of service charges in lieu of property taxes in respect of G.P.R. properties are shown at Manual I Annexure C-1.

As per the provisions of Section 144 (2) of MCGM Act 1888, a person is appointed by State Government with the concurrence of Corporation for fixing Rateable Value of the properties vested in the Central / State Government. The person so appointed for fixing the Rateable Value of Government properties takes a review of the properties newly erected or demolished during the each block period of 5 years, called a quinquennial period.

The Rateable Value of such properties is decided considering the rate at 9% of the total capital cost comprising of cost of the land, cost of construction and cost of electrical installations. The information with respect of cost of land, cost of construction & cost of electrical installations along with other necessary details is obtained from Govt. Authorities, in the proforma attached at Manual I.

The Rateable Value of the properties vested in the Railways and Mumbai Port Trust is decided bilaterally by adopting, by and large, similar principles as in the case of properties vested in Central / State Government. The said work is completed upto period 31.03.1977 in respect of Railways and provisionally upto 31.03.1994 in respect of Mb.P.T. except 2 categories of Mb.P.T properties in respect of which the assessment is completed up to 31.03.1964.

The work of fixation of Rateable Value of Government properties (State and Central Government) is completed upto31.03.1979 and is in progress for the further period from 01.04.1979 to 31.03.1994. The details of collection period on Dt.01.04.2023 to 31.07.2023 is shown in the Manual I Annexure C-2

(5) Wheel Tax Section -

The Wheel Tax was levied up to the period ended 31.03.1999. As per directions given by Government of Maharashtra, Wheel Tax is abolished with effect from 01.04.1999.

(6) Appeal Section (Court Cases) –

The Appeal section work's at Head office of Assessment & Collection department under the Head of Asst. Assessor & Collector. This section submit's Affirmation in Small Causes Court under section 217 of MMC Act. This section co-ordinate's the work between legal department and Assessment Department in Small Causes Court. The staff attend's the Small causes court daily and assist the Asst. Law Officer as necessary. Appeal section also arrange Appeal Committee meeting periodically to take decision of the disposed cases to file First Appeal in Hon. High Court. Appeal Committee also prepare's minute's of the Appeal Committee meeting and circulate's to all the concerned ward's.

(7) Theatre Tax: Under Section 191 E (1) to (3) of the Act, a Theatre Tax at the rates not exceeding those specified in Schedule G (Annexure D) is levied in respect of Theatre, Cinema, Circus, Carnivals and other places of entertainment for every performance or show held or conducted thereat or therein and to which persons are admitted on payment. The Cinema Theatre also included the places where movies are screened with the help of scientifically developed technology / machinery / equipment.

This Tax is payable in advance before the commencement of each show or if there are no separate shows before any person is admitted to the entertainment on any day, by every Proprietor, Manager or person in-charge of the entertainment. For this purpose, under the provision of section 191(F) & 191(H), every Proprietor, Manager or person In-charge of entertainment has to submit a return signed by him in the Form A appended hereto for the purpose of levy of Theatre Tax. Further under section 471 of M.M.C. Act, 1888, minimum fine of Rs.500/- to Rs.2500/- can be imposed on the person primarily liable of payment of theatre tax in case of non-submission of Returns.

If any person fails to pay Theatre Tax, a notice of demand is to be served on the defaulter after three days of the show or performance. No fee is, however, to be charged for such notice. If the tax is not paid or sufficient cause is not shown for nonpayment of same to the satisfaction of the Commissioner within 15 days from the date of service of notice of demand, it can be recovered by distress and sale of moveable property or attachment and sale of the immoveable property of the defaulter as if the amount were a property tax due by him.

Refund of Theatre Tax is also admissible if a show or performance in respect of which the tax has been paid does not take place and an application there for is made within seven days from the date of such a show or performance.

Exemption from payment of Theatre Tax can be granted to the show or performance by the Municipal Commissioner provided it is exempted from payment of duty leviable under the Bombay Entertainment Duty Act, 1923 and that such exemption is applied for with an Exemption Certificate under the Bombay Entertainment Duty Act, 1923 prior to the show or performance or series of shows or performances.

The Municipal Commissioner may, however, in his discretion permit the production of the said certificate at a later date in any special case or class of cases.

Generally exemption from payment of Theatre Tax is granted, if the entertainments are in aid of the following and they are exempted from payment of entertainment duty.

(1) Building fund of an Institute or School.
(2) Educational fund of an Institute.
(3) Poor Boys' fund.
(4) Scholarship fund of a school or a college.
(5) Entertainment aimed at promotion of artistic and cultural activities.
(6) Exemption from Theatre Tax to be granted to all entertainments held on payment of admission fee of One Rupee or less except cinema shows.
(7) The object of charity or other object in aid of which funds are to be utilized should be one that falls within the limits of Greater Bombay and should not pertain to places outside Greater Bombay.

The rates of Theatre Tax are determined by the Corporation from year to year before 20th day of March of each year, subject to limitations laid down in Schedule-G-1appended to the Bombay Municipal Corporation Act. The rates determined by the Corporation are required to be published in the major local newspapers. Prevailing rates of the said tax are as per the maximum rates as shown in the Schedule G-1 as Annexure D (Pg. No. 164).

(8) Repairs Cess:

The Maharashtra Housing And Area Development Act, 1976 (MHADA Act).

The Repairs Cess is leviable on buildings situated only in the City Zone of Mumbai. For the purpose of levy of Repairs Cess, all the buildings have been classified into three categories considering the age of building such as :-

Category A : The Buildings erected before 01.09.1940.

Category B : The buildings erected between the period from 01.09.1940 to to 31.12.1950 (Both inclusive).

Category C : The buildings erected between the period from 01.01.1951 to to 31.12.1969 (Both inclusive).

Note: No Repair Cess is levied on the buildings totally erected on or after 01.01.1970.

Under Sec.82 (2) of Maharashtra Housing & Area Development Act, 1976, the Repairs Cess is collected by Municipal Corporation of Greater Mumbai in the same manner in which the property tax is collected.

Exemption of certain buildings and lands from payment of Repair Cess:-

Under Section 83(1) of Maharashtra Housing & Area Development Act, 1976 the following lands and buildings shall be exempt from payment of the cess,

i) Properties of the Central Government;
ii) Properties of the State Government;
iii) Properties of the MCGM;
iv) Properties of MHADA;
v) Properties of the Trustees of the Port of Mumbai, and not used or intended to the used for the purpose of profit;
vi) Properties vesting in, or leased to, a public trust registered under the Bombay Public Trusts Act, 1950, and exclusively occupied for public worship or for educational purposes;
vii) Properties of co-operative housing societies:
viii) Properties of any Diplomatic or Consular Mission of foreign State;
ix) Properties exclusively in the occupation of the owner which are not repaired by the Mumbai Buildings Repairs & Reconstruction Board (MBRRB) ;
x) Properties exclusively used for non-residential purposes which are not repaired by the Mumbai Buildings Repairs & Reconstruction Board (MBRRB);
xi) Residential properties exclusively occupied on leave and licence basis which are not repaired by the Mumbai Buildings Repairs & Reconstruction Board (MBRRB);
xii) All open plots of lands.

The rates of the Repair Cess leviable in respect of buildings of 'A', 'B' & 'C' categories respectively are 87%, 63%, 39% of the Ratable Value of the building where a building is not structurally repaired by the Mumbai Buildings Repairs & Reconstruction Board (MBRRB), 195%, 135% and 75% of the Ratable Value, where the MBRRB has contributed upto Rs.300/-per Sq. Meter for structural repairs, 390%, 270% and 150% of the Ratable Value, where MBRRB has contributed from Rs.300/- to 500/- per Sq. Meter for structural repairs and 585%, 405% & 225% of the Ratable Value, where MBRRB has contributed above Rs.500/- to Rs.750/- per Sq. Meter for structural repairs of residential properties. Where MBRRB has contributed above Rs.750/- to Rs.1000/- & above Rs.1000/- to Rs.1200/- & above Rs.1200/- upto Rs.2000/- per sq. mtr. for structural repairs, the rates of Repair Cess leviable are not yet conveyed to this Corporation by the State Government.

Where any part of the building is or are used for non-residential purposes the rates of cess leviable at present in respect therof are 164%, 116% & 68% of the ratable value of non residential part of the building, where a building is not structurally repaired by the board and at 380%, 260% & 140% where the board has contribute upto Rs.300/- per sq. Meter for structural repair and at 770%, 530% & 290% where the Board has contributed between Rs.300/- to Rs.500/- for structural repairs and at 1160%, 800% & 440% where the Board has contributed between Rs.500/- to Rs.750/- for structural repairs.

The Rate pamphlet furnishing the Rates of Repairs Cess from 1.1.1970 onwards is shown in Annexure E

(9) Statistical section (property tax)—

Reply to all Questions raised in Legislative assemblies regarding Assessment & Collection Deptt. (Star Questions, Non Star Questions, Ashwasane, HarkaticheMudde, KapatSuchana, LakshavedhiSuchana& send reply to questions raised by Corporators under Section 66A, 66 B,66C etc. Put up Proposals for Sanction of Competent Authorities and Municipal Committees. To submit respective D.L. to Municipal secretary. To put up Proposals regarding Policy matters & issue circulars after due sanction. Submit Administrative Report to Municipal Commissioner. Submit various reports as and when required by higher authorities after consolidating information from wards and after obtaining information from software vendor through A.O./computer. To prepare Revenue Budget Estimates and Revised estimates for Assessment & Collection Department & to prepare Budget Speech.

(10) Expenditure section—

Preparation of proposals regarding maintanance& servicing , Keeping track of maintanance&serviving of Computers , Printers, Franking Machine , preparation of P.O. Migo etc. In sap system.Preparation of Budget.

Preparation of proposals for advances, Closing advances & paper work regarding advances. . Making payment EMD , Security Deposit, Bank Guarantee, legal contract etc.

Preparation of monthly collection report of St. Education Cess & Employment Guarantee Cess related to State Government & reported to C.A. (Finance)

To preserve & update Dead Stock Register.

(11) Department- Enquiry Section -

After verifying the Official Record, to give remarks regarding Enquiry as required for Promotion, Retirement, Deemed permanancy, Continuation of Service, Issuing Passport & VISA to Employees. To do correspondence with related Sections or Other departments regarding Preliminary, SDE & FFDE, ACB — Criminal cases and Unauthorised Absentee cases. Preparing Monthly Report of Outstanding Enquiry Cases. To prepare Show Cause Notice, Memo, Charge Sheet, Punishment Orders to issue on employees of Octroi& Assessment Department in cases of Evasion of Octroi, Outstanding Property Tax. As per requirement to prepare proposals in some enquiry cases.

In respect of employees of A & C Department with Octroi branch, the procedure of deemed permanency & Continuations of service after 55 years of age of employees working in Assessment & Collection Department is followed. According to the procedure and as per the rules of M. S. R. 1989 orders are issued respectively.

To dispose off applications received pertaining to Enquiry Section of Assessment & Collection Department under RTI 2005, as a PIO

(12) Survey Section (City/ E.S./W.S.)–

To conduct measurement of the properties situated in city wards. To visit sites as per wards memo. After identification of the property by concern ward's measurement of the plot of land &New construction and remeasurement of the building are done physically with the help of approved plan submitted by ward.

At the time of measurement of plot of land, FSI, set back area are observed & furnish report accordingly.

At the time of measurement of New construction, annexture of plot of land is observed & confirm the FSI assessed. If found differs as per plan, then intimate ward accordingly to raise revenue. Then it gets confirm that all flats are as per approved plan only. If joint flats are found or any variation found it is mentioned in the report. Also if Balcony, nich, flower bed, Elevation projection area is enclosed in the block area then measurement is taken accordingly to increase the revenue.

If memo received from the wards regarding complaints of the party in respect of the measurement of area then inspect the property with the concerned ward staff & furnish measurement report accordingly. Thus it helps to solve the complaints of the party.

(14) Capital Value System–

In order to overcome the shortcomings of the old system, Capital Value based property tax system has been introduced. The new system is simple, transparent and self-assessable. The implementation has been carried out in the month of December 2012 with the retrospective effect of 01.04.2010 by amending the law as per due process. The amendments to the BMC Acts came into force from 01.04.2010. During the intervening period a Joint Select Committee was appointed by the Legislative Assembly to look in to the proposed change. This committee after long deliberations approved the amendments after effecting some changes. Corporation has also passed a resolution bearing No.1091 of 27.01.2010 approving the change over from the Ratable Value System to the Capitalized Value System with effect from 01.04.2010.

An Expert Committee was appointed to prepare the rules and the classification of the lands & building with respect to age of the building, type of construction, user category and other factor if any and also to assign the weightages thereto. Objections & suggestions were invited after publishing the Draft Rules and after going through the same, the Expert Committee submitted their report with some changes. The Standing Committee of Corporation sanctioned the said draft rules with some changes vide resolution No.169 of 09.05.2012.

A Consultant was also appointed to recommend the rates of taxation required to be adopted on the Capital Value. The Committee was specifically told to ensure that revenue neutrality is not compromised while fixing such rates. After approval to Tax Rates by the Standing Committee vide their resolution No.148 dated 09.05.2012, Final Capital Value based Property Tax bills were issued to tax payers in the month of December 2012.

The levy of Capital Value based Property Tax is within the maximum limit prescribed in the Act as specified below-

1. No increase in existing tax for residential houses having carpet area up to 500 sq.ft.

2. Capping up to two times of the existing tax for residential houses having carpet area of more than 500 sq.ft.

3. Capping up to three times of the existing tax for commercial properties.

4. The Capital Value will be revised only after every Five years, and the increase in taxes cannot be more than 40% of the tax payable in the earlier year of such revision. However, the Tax Rates at that time will be decided by the Standing Committee / Corporation and the extent of increase in taxes could be kept to the minimum.

5. The flats/premises let outs on Leave & License will be treated as self occupied and the ceiling provided in the Act has to be applied on the presumptive tax of such flat as per self-occupied premises.

6. The telescopic concession in property tax for the re-developed buildings under various schemes has been continued under the new tax system also.

7. Capital Value of Buildings and Lands situated within the limits of BrihanmumbaiMahanagarpalika has been revised with effect from 1.4.2015 as per the provision of section 154(1C) of Mumbai Mahanagarpalika Act,1888 .

As per the provision of section 140A of MMC Act,1888, the property tax levied w.e.f.1.4.2015 shall not ,in any case, exceed 40 per centum of the amount of the property tax payable in the year immediately preceding the year of revision as per section 154 (1C)of MMC Act,1888. But as per the provision of proviso inserted after 4th proviso of section 140A vide Maharashtra state ordinance no.13 of 2015, Amount of property tax leviable in respect of residential building or residential tenements, having area of 46.45 Sq. mt. (500 Sq ft.) or less , shall not exceed the amount of property tax levied and payable on 31st March,2015.

Standing Committee has passed the resolution bearing no. 1442 dated 19.3.2015 approving the rules for fixation of capital value w.e.f 1.4.2015.

Corporation has passed resolution bearing no.1297 dated 20.3.2015 approving the proposal of Tax Rate for 2015-16 having 14.52% increase in 2014-15 revenue.

Government of Maharashtra has issued Maharashtra Ordinance No. XI of 2019 dt.10th March 2019 regarding non levy of property tax in respect of residential buildings or residential tenements, having carpet area of 46.45 sq. meter (500sq.feet) or less.

Rules for fixing Capital Value and tax rates for the period 2010-11 to 2014-15 and from 2015-16 are at Manual V respectively. The said Rules and tax rates are available in 24 ward offices as well as on MCGM website namely http://portal.mcgm.gov.in.

Functions of Assessment & Collection Department

Levy & Recovery of Property Taxes-

As per Section 139 of the Act, Corporation is authorized to levy -

(1) Property Taxes,

(2) Octroi, (Cancelled from dtd.01.07.2017 by government order)

(3) Theatre Tax,

Property tax consists of the following taxes.

(1) General Tax (including fire tax),

(2) Water Tax,

(3) Water Benefit Tax,

(4) Sewerage Tax,

(5) Sewerage Benefit Tax,

(6) Education Cess,

(7) Street Tax.

All the taxes are based on the Ratable Value of any land and buildings. The existing rates of property taxes are shown in the Annexure F

Levy and Recovery of Government Taxes –

The Tree Cess as per the provisions of Sections 18(1) & 19(2) of Maharashtra (Urban Area) Preservation of Trees Act, 1975 and the State Education Cess and Employment Guarantee Cess as per the provisions of Maharashtra Education & Employment Guarantee Cess Act, 1962 are levied and recovered as property taxes. The Government is granting commission at the rate of 2% to this Corporation for recovery of State Education Cess& Employment Guarantee Cess.

Repair Cess and Maharashtra Tax on Larger Residential Premises are the taxes of Government and are recovered separately by the Department. The Government is granting commission at the rate of 5% to this Corporation for recovery of these taxes.

Property taxes are levied on Ratable Value up to 31.3.2010 and Property taxes are levied on Capital Value with effect from 01.04.2010. For the said purpose, an Assessment Book is maintained, where in, the following particulars were registered.

1. List of all assessed buildings and lands.

2. Ratable Value of each assessed Building and Land.
3. The name of the person primarily liable for payment of property taxes, etc.

Important stages in the process of assessment & collection of Property Taxes are as below –

Inspection of properties:

i) To levy the property taxes under Section 140 (1).

ii) To fix primary responsibility for property taxes under section 146.

iii) To inspect the property under Section 155 of the Act.

iv) To keep Assessment Book under Section 156 & 157.

v) To effect the transfer of property under Section 149 & 150.

vi) To give public notice as regards to completion of the Assessment Book under Section 160 and invite complaints against Ratable Value.

vii) To keep the Assessment Book open for inspection under Section 161 of the Act.

viii) To arrive at the Ratable Value of the property in accordance with the provision under Section 154 (1) of the Act.

ix) To issue special notices in certain cases and inviting complaints under section 162 (2) of the Act.

x) To hear and investigate the complaint against the Ratable Value under Section 165 of the Act.

xi) To authenticate the Ward Assessment Book under Section 166 of the Act.

xii) To amend the Assessment Book during the official year under Section 167 of the Act.

Collection of Property Taxes:

i) To serve the Property Tax Bill under Section 200 of the Act.

ii) Levy of penalty on unpaid amount of bill under Section 202 of the Act.

iii) To issue distress and attachment warrants under section 203 of the Act.

iv) To sale the property in public auction under Section 206 of the Act.

v) To file a suit in the Court of Competent Jurisdiction against the defaulter under section 211 of the Act.

Recovery of Water Charges through A.&C. Department is stopped w.e.f.31.03.2001 and now Water department is collecting the Water bills.

ANNEXURE C-1

Table No1 of Property Tax (Residential C.V)				
Rates of percentage applicable for G.P.R. properties in C. V. System in respect of State/Central Government With Effect From 01.04.2015				
	State Government	State Government Exempted Properties	Central Government	Central Government Exempted Properties
	Schedule I	Schedule II	Schedule I	Schedule II
General Tax	0.88 % i.e 8/10 of Normal Rate applicable for private property owners i.e 80% of 0.110%	Nil	0.83% i.e. 75% of normal rate applicable for private property owners i.e 75% of 0.110%	Nil
W.T.	Nil	Nil	Nil	Nil
W.B.T.	100 % of Normal Rate i.e.0.069%	100 % of Normal Rate i.e.0.069%	100 % of Normal Rate i.e.0.069%	100 % of Normal Rate i.e.0.069%
S.T.	Nil	Nil	Nil	Nil
S.B.T.	100 % of Normal Rate i.e.0.043%	100 % of Normal Rate i.e.0.043%	100 % of Normal Rate i.e.0.043%	100 % of Normal Rate i.e.0.043%
Mun. Edu. Cess	0.032% i.e 8/10th or 80% of Normal Rate of 0.040%	Nil	Nil	Nil
St.Edu.Cess	Nil	Nil	Nil	Nil
E.G.C.	Nil	Nil	Nil	Nil
Tree Cess	100% of Normal Rate i.e.0.002%	100% of Normal Rate i.e.0.002%	100% of Normal Rate i.e.0.002%	100% of Normal Rate i.e.0.002%
Street Tax	Nil	Nil	Nil	Nil
Total of %	0.234	0.114	0.197	0.114

Table No2 of Property tax (Non-Residential C.V.)				
Rates of percentage applicable for G.P.R. properties in C. V. System in respect of State/Central Government With Effect From 01.04.2015				
	State Government	State Government Exempted	Central Government	Central Government Exempted

		Properties		Properties
General Tax	0.216% i.e 8/10 of Normal Rate applicable for private property owners i.e. 80% of 0.270%	Nil	0.203%i.e.75% of normal rate applicable for private property owners i.e 75% of 0.270%	Nil
W.T.	Nil	Nil	Nil	Nil
W.B.T.	100 % of Normal Rate i.e.0.170%	100 % of Normal Rate i.e.0.170%	100 % of Normal Rate i.e.0.170%	100 % of Normal Rate i.e.0.170%
S.T.	Nil	Nil	Nil	Nil
S.B.T.	100 % of Normal Rate i.e.0.105%	100 % of Normal Rate i.e.0.105%	100 % of Normal Rate i.e.0.105%	100 % of Normal Rate i.e.0.105%
Mun. Edu. Cess	0.08% i.e 8/10th or 80% of Normal Rate of 0.100%	Nil	Nil	Nil
St.Edu.Cess	Nil	Nil	Nil	Nil
E.G.C.	Nil	Nil	Nil	Nil
Tree Cess	100% of Normal Rate i.e.0.005%	100% of Normal Rate i.e.0.005%	100% of Normal Rate i.e.0.005%	100% of Normal Rate i.e.0.005%
Street Tax	Nil	Nil	Nil	Nil
Total of %	0.576	0.280	0.483	0.280

Table No 3 of Property Tax				
Rates of percentage applicable for G.P.R. properties in C. V. System in respect of State/Central Government With Effect From 01.04.2015				
	State Government	State Government Exempted Properties	Central Government	Central Government Exempted Properties
General Tax	0.400% i.e 8/10 of Normal Rate applicable for private property owners i.e 80% of 0.500%	Nil	0.375% i.e. 75% of normal rate applicable for private property owners i.e 75% of 0.500%	Nil
W.T.	Nil	Nil	Nil	Nil
W.B.T.	100 % of Normal Rate i.e.0.315%	100 % of Normal Rate i.e.0.315%	100 % of Normal Rate i.e.0.315%	100 % of Normal Rate i.e.0.315%
S.T.	Nil	Nil	Nil	Nil
S.B.T.	100 % of Normal Rate i.e.0.195%	100 % of Normal Rate i.e.0.195%	100 % of Normal Rate i.e.0.195%	100 % of Normal Rate i.e.0.195%
Mun. Edu. Cess	0.152% i.e8/10th or 80% of Normal Rate of 0.190%	Nil	Nil	Nil
St.Edu.Cess	Nil	Nil	Nil	Nil
E.G.C.	Nil	Nil	Nil	Nil
Tree Cess	100% of Normal Rate i.e.0.010%	100% of Normal Rate i.e.0.010%	100% of Normal Rate i.e.0.010%	100% of Normal Rate i.e.0.010%
Street Tax	Nil	Nil	Nil	Nil
Total of %	1.072	0.520	0.895	0.520

Rates of percentage applicable in C.V.System for Properties of Railways(Central/Western)w.e.f. 01.04.2010	
	Non-Residential Capital Value
General Tax (Pre-constitution)	100% of normal rate i.e. 0.270% (no other taxes for pre-constitution)
General Tax (Post-constitution)	75% of normal rate 0.270% i.e 0.203%
W.T.	Nil
W.B.T.	0.170%
S.T.	Nil
S.B.T.	0.105%
Mun.Edu.Cess	Nil
St.Edu.Cess	Nil
E.G.C.	Nil
Tree Cess	0.005%
Street Tax	Nil
Total %	0.483

Rate of percentage in R.V. System applicable in respect of G.P.R. properties w.e.f. 01.04.2000 up to 31.03.2010			
	State Government	Central Government	Railway (Pre. Con.)
General Tax	8 / 10 Normal rate 30% i.e. 24%	70%(i.e.22.50, 15%,10%	14.75
		75%{of normal rate	
		50%{as the case may be	
		33%{10%	
		30%	
		42% of Normal G.T for Railways (Post-constitution) for the time being	
W.T.(R)	Nil	Nil	Nil
(NR)	Nil	Nil	Nil
W.B.T.(R)	100% of Normal Rate i.e.12.50%	100% of Normal Rate i.e.12.50%	Nil
(NR)	Nil	Nil	Nil
S.T.(R)	Nil	Nil	Nil
(NR)	Nil	Nil	Nil
S.B.T.(R)	100% of Normal Rate i.e.7.50%	100% of Normal Rate i.e.7.50%	Nil
(NR)			
Education Cess	8/10 of normal rate 12% i.e. 9.60%	Nil	Nil
St.Edu.Cess (R)	Nil	Nil	Nil
(NR)	Nil	Nil	Nil
E.G.C.	Nil	Nil	Nil
Tree Cess	100% of Normal Rate i.e.0.5%	100% of Normal Rate i.e.0.5%	Nil
Street Tax	Nil	Nil	Nil

Rates of percentage applicable for Mb.P.T. properties on Rateable Value in R.V. System w.e.f. 01.04.2000	
General Tax	19/20th of Normal Rate 30.0%
	i.e. 95% of normal rate 30% i.e.28.50%
W.T. (R)	Nil
(NR)	Nil
W.B.T.(R)	100% of Normal Rate i.e. 12.50%
(NR)	100% of Normal Rate i.e. 25.00%
S.T.(R)	Nil
(NR)	Nil
S.B.T. (R)	100% of Normal Rate i.e. 7.50%
(NR)	100% of Normal Rate i.e. 15.00%
Mun.Edu. Cess (R)	Nil
(NR)	Nil
St.Edu.Cess (R)	100 % of Normal Rate i.e. 2.00% to 6.00% as the case may be
(NR)	100 % of Normal Rate i.e. 4.00% to 12.00% as the case may be
E.G.C.	100 % of Normal Rate i.e. 1.00% to 3.00% as the case may be
Tree Cess	100 % of Normal Rate i.e. 0.5%
Street Tax	100 % of Normal Rate i.e. 15.00%

ANNEXURE C-2

Statement Regarding Collection of Government, Port Trust and Railways From April 2023 to July 2023	
(Rs. in lacs)	
Collection	132.31

Asstt.Assessor& Collector/G.P.R.

Under clause (1) of article 285 of the Constitution of India, following the set of circulars for guidance/clarification regarding Central/State Government are exempted from the property taxes.

No. 14(1)-P/52-I,

Government of India,

Ministry of Finance,

(Department of Economic Affairs).

New Delhi, the 10th May,1954.

From -

Shri C.S. Krishna Moorthi, I.A.S.,

Deputy Secretary to the Govt. of India.

To -

The Chief Secretaries to the Government,

All Part 'A' & Part 'B' States,

(Except Jammu and Kashmir).

Sub :Payment of service charges to local bodies

In respect of Central Government properties.

Sir,

Under Clause (1) of Article 285 of the Constitution the properties of the Government of India are exempt from all taxes imposed by local authorities in the States. It has been represented to the Government of India that not-withstanding this

Article the Government should agree at least to the payment of charges for services rendered by local authorities. The Government of India have been given careful consideration to such representations in the light of the recommendations made by the Local Finance Enquiry Committee in regard to taxes on Central Government properties. They have decided that payment should be made with effect from

1st April, 1954 to local bodies for 'Service Charges' in respect of Central Government properties on the following basis -

i) The Central Government will make payment in respect of their properties for specific services rendered by local authorities; but such payment of such 'service charges' shall be treated not as payment of taxes but of compensation payable in quasicontract. Specific services will include not only direct services such as water and electric supplies, scavenging, etc., but also general services such as street lighting, town drainage, approach roads connecting the Central Government properties, etc. But such items as educational, medical or public health facilities will be excluded.

ii) For large and compact blocks of their properties the Central Government will not pay for such specific services as they themselves arrange.

...2...

No. 14(1)-P/52-I, 10th May, 1954.

iii) As regards assessment, no difficulty should arise in respect of items like metered water or electricity, etc., or where services like drainage and scavenging etc. are charged for separately. But where some or all such specific services are not charged for separately but are part of a consolidated house or property tax, a suitable percentage of such consolidated tax, representing the element of specific services will be paid by the Government. The State Government concerned may kindly fix this percentage, on behalf of the Central Government, for each local body concerned and intimate such percentages to the Ministry, of W .H. & S., who will arrange to intimate them to all other Ministries of the Government of India and through of them to all the Central Government Offices concerned. Similarly, the valuation of the Central Government property may be done by the agency which undertakes the valuation of the State Government property and any references regarding changes in valuation should be made to the Ministry of Railways (Railway Board in the case of Railways properties and to the Ministry of W.H. & S. In other cases(where any question of principle is involved, the Ministry of Railways will act in consultation with Ministry of W.H. & S.)

iv) A Ministry of the Government of India may also enter into separate contract with any local authority for the supply of water and electricity of scavenging or any other services.

v) The above arrangement will be subject to review, either in case the Taxation Enquiry Commission suggest any modification or at the end of ten years, to see whether any payment due to local bodies has been denied by the Center or whether the Central Government has accepted a large liability than is warranted.

vi) Properties which are already paying service or property taxes under Clause (2) of Article 285 of the Constitution will not come within the purview of these orders; nor will properties of Central Government Industrial Undertakings constituted into private limited companies under the India Companies Act.

vii) These arrangements do not effect the legal lights conferred Under the appropriate laws or any property held by the Central Government within the jurisdiction of local bodies.

I am to request that the decision of the Government of India conveyed in this letter may kindly be intimated to the local authorities within your State.

Yours faithfully,
Sd/- C. S. Krishna Moorthi,
(C.S. KRISHNA MOORTHI)
Deputy Secretary to the Government of India.

LOCAL BODIES

Payment of service charges to-
In respect of Central
Government properties.

Government of Bombay
Local Self Government and Public
Health Department,
Resolution No. MUN 2154
Bombay Castle, 22nd July 1954.

Letter No.14(1)-P/52-I, dated 10th May, 1954, from the Government of India, Ministry of Finance (Department of Economic Affairs).

RESOLUTION : The accompanying letter No. 14(1)-P/52-I, dated 10th May, 1954, from the Government of India, Ministry of Finance (Department of Economic Affairs) should be communicated to all the Municipal Corporations, Municipalities and Village Panchayats for information and necessary action.

2. Where the specific services are charged for, separately, the local bodies should collect the same from the Department of the Government of India concerned with the property. In regard to service charges which are not levied separately but are part of consolidated Tax, the Directors of Local authorities should communicate to Government the percentages to be fixed in respect of such service charges vide Para 1(iii) of the Government of India letter referred to above.

3. The attention of the local bodies is invited to paragraph (vi) of the Government of India letter.

4. The directors of Local Authorities are requested to translate these orders in regional languages and supply copies of the same to — Village Panchayats.

By order and in the name of the
Governor of Bombay
B.J. Naik,
Under Secretary to Government.

...2...

Government of Bombay
Local Self Government and Public
Health Department,
Resolution No. MUN 2154
Bombay Castle, 22nd July 1954.

To
The Municipal Commissioner, Greater Bombay,
The Municipal Commissioner, Poona,
The Municipal Commissioner, Ahmedabad,
The Director of Local Authorities, Central Division, Poona,
The Director of Local Authorities, Southern Division, Belgaum,
The Director of Local Authorities , Northern Division, Ahmedabad,
The Executive Engineers, Presidency Division, Poona Division and
Ahmedabad Division,
All Collectors, Consulting
Surveyor to Government,
The Examiner, Local Fund Accounts, Bombay,
The Finance Department,
The Public Works Department,
The Presidents of all Municipalities.

GOVERNMENT OF INDIA

Ministry of Finance

(Department of Co-ordination)

New Delhi, the 29th March 1967.

From:

Shri J. Murli,

Under Secretary to the Government of India.

To,

The Chief Secretaries of all the State Governments.

Sub Payment of service charges to Local bodies in respect of Central Government properties.

Sir,

I am directed to refer to this Ministry's letter No.14(1)-P/52-1 dated the 10th May, 1954 and the Ministry of Works, Housing and Supply letter No.Cont. 23(13)/59 dated the 4th August, 1961, on the subject cited above.

The procedure for arriving at the quantum of service charges payable to the local bodies has been further examined by the Government of India and it has now been decided that the service charges should be calculated in the following manner.

i) In respect of isolated Central Government properties where all services are availed of by the Central Government in the same manner as in respect of private properties, the Central Government will pay service charges equivalent to 75% of the property tax realized from private individuals.

ii) In the case of large and compact colonies which are self-sufficient with regard to services or where some of the services are being provided by the Central Government Departments themselves, the services charges will be calculated in the following manner.

a) In the case of colonies which do not directly avail of civic services within the area and are self-sufficient in all respects, the payment of service charges will be restricted to 33 1/3% of the normal rate of property tax applicable to private properties.

b) In respect of colonies where only a partial use of the services is made, service charges will be paid as 50% of the normal property tax rate.

...2...

C) In respect of colonies where all the services normally provided by the Municipal body to the residents of other area within its limits are being availed of, service charges will be paid as 75% of the property tax rate realized from private individuals.

iii)The net rateable value/annual value for the purposes of these instructions shall be 9% of the 'Capital Value' of the property concerned, both in respect of residential and non-residential properties. The 'Capital Value' shall include the cost of acquiring or constructing the buildings the cost of site, its preparation and any other capital expenditure incurred after acquisition or construction or when this is not known the present value of the building including the value of site, as borne on C.P.W.D. records or those of the Department concerned.

iv)The existing arrangements arrived at between the Railway authorities or any Central Government Departments and local bodies in respect of property tax /service charges including the arrangements envisaged regarding Central Government properties in Calcutta and as regards the properties in Delhi will not be disturbed by this decision.

(3) I am to request that the decision of the Government of India conveyed in this letter may kindly be intimated to the local authorities within your State.

Yours faithfully,
Sd/- J. Murli
(J. MURLI)
Under Secretary to the Government of India

...

No.4(7)-P/65

Copy forwarded for information to :

(a) All Ministries/Departments of the Central Government.

(b) Comptroller and auditor General of India, New Delhi.

Sd/- J. Murli
Under Secretary to the Government of India.

D.O.No.12011/6/79 U.C.D.

Government of India,
Ministry of Works & Housing,
New Delhi.
Dated the 7th November,1979.

To,
The Secretary,
Urban Development & Public
Health Department,
Mantralaya,
Bombay.

Sub: Municipal Corporation of Greater Bombay,
Payment of Water Benefit and Sewerage Benefit
Tax in respect of properties owned by the Central
Government.

Sir,

I am directed to refer to your letter No.BMC/1778/2494-UD-3, dated the 19th April, 1979, and to state that according to the Article 285(2) of the Constitutions of India, the Central Government are liable to pay taxes on their properties which were being paid before the 1st April, 1937. The Ministry of Finance letter No.4(1) P/66, dated the 23rd April, 1966 and 15th September, 1966, are applicable in this respect. In other words, no new taxes which were not being paid before April 1937, would be payable in terms of Article 285(2) of the Constitution and thus the question of payment of Sewerage and Water Benefit Tax to the Bombay Municipal Corporation does not arise in case of properties covered by Article 285(2) of the Constitutions.

The Central Government properties not covered by Article 285(2) of the Constitutions are exempted from payment of local taxes under the authority of Article 285(1) of the Constitutions. The Central Government have, however, decided to pay in respect of these availed properties service charges for the Municipal Service actually availed of. Payment of these service charges is governed by Ministry of Finance's letter No.14(1)-P/52 dated 10-5-1954, No.4(7) P-65 dated 29-3-1967 and No.4(2) PFI/74, dated 28-5-1976. The question of payment taking into account for calculation of service charges payable to the Bombay Corporation of the Sewerage and Water Benefit Taxes levied by the B.M.C. was examined by the Ministry of Finance on receipt of reference from Department of Atomic Energy and D.G.P. & T. in consultation with the Ministry of Law Department of Legal Affairs. The Department was of the opinion that these two taxes are not in the nature of State Taxes but are in the nature of fees for the direct services rendered by the Corporation and hence should be taken into account for payment of service charges in respect of the Central Government properties under the orders issued by the Ministry of Finance in letter No.14(1) P-52 dated 10th May, 1954 and No.4(7) P-65 dated the 29th March, 1967, will be applicable in the matter.

Yours faithfully,
Sd/-
(L.P. Gupta)
Research Officer.

L.P. Gupta,
Search Officer.

D.O. No.N-12011/6/79-UCD.
Government of India,
Ministry of Works & Housing,
Nirman Bhawan, New Delhi.
Dated the 3rd August, 1984.

Dear Shri Pol,

Kindly refer to your D.O. No.AC/3943/GPR dated 11th of June, 1984 regarding payment of Water Benefit Tax and Sewerage Benefit Tax in respect of the properties owned by Central Government Departments in Bombay.

The question relating to the payment of Water and Sewerage Benefit Taxes levied by the Municipal Corporation of Greater Bombay has now been clarified. According to the legal opinion, prima facie, so long as the tax is for a specific service, the same is payable. The Ministry of Law and Justice, Department of
Legal Affairs (Bombay) have also opined that Water and Sewerage Benefit Taxes are not in the nature of State taxes but in the nature of fees for direct services rendered by the Corporation to the residents and are payable by the owners and that both these taxes levied at 5% and 3% of the rateable value of the property are payable by the Central Government for their properties.

The percentage rates specified in the Ministry of Finance letter dated 29-3-67 are applicable only where service charges are not charged for separately but form part of the consolidated property tax. Where specific services like the ones under reference are charged for separately and are clearly identifiable, the question of applicability of the percentage rates prescribed in the abovementioned letter does not arise. In view of the above, the Water and Sewerage Benefit Taxes charges by the Municipal Corporation of Bombay are payable by the Central Government Departments.

With regards,

Yours sincerely,
Sd/-
(L. P. Gupta)

To,

Shri B.B. Pol

Assessor & Collector,

Municipal Head Office Building,

Fort, Bombay-400 001.

IMMEDIATE

No.N-11025/26/94-UCD

Government of India

Ministry of Urban Development

New Delhi dated the 26th April, 1994.

OFFICE MEMORANDUM

Sub: Instructions to Central Government and State Government regarding levy of service charges on The Central Government properties by the Local Bodies.

...

As you are aware that in terms of article 285 of the Constitution, properties of the Union are exempt from the payment of all taxes imposed by a State or by any authority within a State.

2. Though the properties of the union is exempted, however, such properties of the Union are liable to pay service charges for the services rendered by the Local Bodies.

3. In this connection, Ministry of finance had issued broad guidelines in 1954 which were later on amended in 1967. According to the instructions contained in Ministry of Finance's letter No.14(1)-P/52-1 dated 10-5-1954, No.4(7)-P/65 dated 29-8-1967, No.4(2)-PFI/74 dated 28-5-1976 and No.42(1)-PFI/79 dated 26-8-1966, the service charges on the properties belonging to the Central Government are calculated as under:-

i. In respect of isolated Central Government properties where all services are availed of by the Central Govt. in the same manner as in respect of private properties, the Central Government will pay service charges equivalent to 75% of the property tax realized from private individuals.

ii. In the case of colonies which do not directly avail of civic service within the area and are self sufficient in all respects, the payment of service charges will be restricted to 33 1/3% of the normal rate of property tax applicable to private properties.

iii. In respect of colonies where only partial use of the services is made, service charges will be paid as 50% of the normal property tax rate.

...2...

No.N-11025/26/94-UCD/26th April, 1994.

iv. In respect of colonies where all the services normally provided by the Municipal Body to the residents of other areas within its limits are being availed of, the service charges will be paid as 75% of the property Tax realized from private individuals.

4. It was, however, clarified in the Ministry of Finance letter dated 26-8-1986 that wherever services rendered by the local bodies in respect of Central Government properties are measured like metered water supply or electricity, etc. or where services like Drainage and scavenging, etc. are charged for separately, they Will be paid for accordingly. And where such specific services are part of consolidated House or Property Tax, the same will be regulated accordingly to the instructions at Sr. No. (i), (ii), (iii) & (iv) above.

5. It may be seen from the above that the Central Government is obligated to pay service charges to the Local Bodies :-

a) at 100% of charges paid by private individuals where specific charges exist for metered/measured service such as water and electricity and

b) at 75% of the Property Tax realized from private individuals in respect of isolated Central Govt. Properties where all municipal services are availed of by the Central Govt. and at rates ranging from 331/3% to 75% of the Property Tax realize from private individuals in respect of large and compact Central Government's colonies depending upon whether such colonies are full or partially self-sufficient in the provision of local Services.

6. The above instructions have been circulated to all the State Government/UTS from time-to-time for intimating the decision of the Government of India to Urban Local Bodies for follow-up.

...3...

No.N-11025/26/94-UCD/26th April, 1994.

7. It has been brought to the notice of this Ministry that some of the Departments of Central Government who owned vast properties under them are not paying service charges on regular basis to Urban Local Bodies. Since the service charges on Central Government properties payable to the Urban Local Bodies, from a vital sources of revenue for them, therefore, it is requested that the Ministry of Agriculture, etc. may kindly reiterate upon the concerned authorities under their administrative control to follow the above instructions strictly in regard to the payment of service charges in respect of Union Properties on regular basis to Urban Local Bodies. Similarly, the Public Section Undertakings under their administrative control may also be advised to pay the property tax/other taxes in respect of properties owned by such Public Sector Undertakings to Urban Local Bodies on regular basis.

(TARSEM LAL)
DIRECTOR (LSG)
Tele.3017252

To

(1) All Ministries/Departments of Central Government.
2) D. C. (W), C.P.W.D.

Copy forwarded for information to Secretary (LSG/UD) of all the State Government/UTS.

No.N-11025/26/94-UCD

Government of India

Ministry of Urban Development

NirmanBhawan , New Delhi 110011

dated the 30th November, 2004

OFFICE MEMORANDUM

Subject — Payment of Service Charges to local bodies in respect of Central Government properties — reg.

The undersigned is directed to refer to Asstt. Assessor & Collector (G.P.R.) BrihanmumbaiMahanagarpalika, Mumbai's letter number AA&C/GPR/1326/2004-05 dated 30.10.2004 on the subject noted above and to say that there is no proposal to empower the local bodies to levy property tax on the properties of Central Government. However, the properties of union are required to pay Service Charges in term of instructions contained in the Ministry of Finance's letters dated 10.5.1954,
29.3.1967, 28.5.1976 and 26.8.1986 which have been stipulated in this Ministry's OM No. N- 11025/ 26/ 94- UCD dated 26.4.1994 (copy enclosed for ready reference)

In view of this, it is requested that the matter regarding payment of Service Charges in respect of Central Government properties may be taken up directly with the Municipal Body concerned.

(SubhashChander)

Under Secretary to the Govt. of India

Phone 23013898

The Asstt. Assessor & Collector
(Govt. Port Trust & Railways)
Chandanwadi Municipal School Bldg;
3rd floor, J.S.S. Marg, Chandanwadi,
Mumbai 400002

No.N-11025/26/94-UCD

Government of India

Ministry of Urban Development & Poverty Alleviation

(Department of Urban Development)

NirmanBhawan, New Delhi- 110011

Dated 24th June 2002

To,

The Asstt. Assessor & Collector

(Govt. Port Trust & Railways)

Assessment & Collection Department,

BrihanmumbaiMahanagarpalika,

Chandanwadi Municipal School Building,

3rd floor, Chandanwadi, J.S.S. Road,

Mumbai- 400002

Subject — Payment towards Municipal Service Charges & Water Charges and assessment of the properties of Railways and Mb.P.T.

Sir,

Please refer to your letter under number AA&C/ 745-A/ GPR/ 2002-03 dated 24th May 2002 addressed to Officer-In-Charge, Ministry of finance (Finance Department), New Delhi on the above subject. Ministry of Finance has transferred the same to this Ministry. The matter has been examined in this Ministry and it is informed that the payment of Service Charges to the local urban bodies is governed as per Ministry of Finance's circular Nos. 14 (1)-P/52-I dated 10.5.1954, 4(7)-P/65 dated 29.3.1967, 4(2)/PFI/74 dated 28.5.1976 and 4(2)/PFI/ 74 dated 26.8.1986. In view of this, this Ministry has no further comments to offer in this regard.

Yours faithfully

(Subhash Chandra)

Under Secretary to the Govt. of India.

No.N-11025/26/2003-UCD
Government of India
Ministry of Urban Development
UCD/LSG Section

New Delhi dated 15th December 2009

Nirman Bhawan,

OFFICE MEMORANDUM

Subject: Payment of service charges to local bodies in respect of Central Government properties – Supreme Court Order in Civil Appeal No.9458-63/2003 -Rajkot Municipal Corporation & Others Vs. UOI & Others. .....

The undersigned is directed to State that the Hon'ble Supreme Court vide its order dated 19.11.2009 disposed of the Civil Appeal No.9458-63/2003 - filed by Rajkot Municipal Corporation & Others vs. UOI & Others(copy enclosed) relating to payment of service charges by Central Government Departments to Urban Local Bodies, with the following directions:-

1) The UOI & its Departments will pay service charges for the services provided by appellant Municipal Corporations. No Property Tax will be paid by UOI but service charges calculated @ 75%, 50% or 33 1/3% of Property Tax levied on property owners will be paid, depending upon utilization of full or partial or Nil services. For this purpose agreements will be entered into UOI represented by concerned Departments with respective Municipal Corporation.

2) The arrangement at (1) is open to modification or revision by mutual consent. In the event of disagreement, the same shall be resolved by a 3 member Mediation Committee consisting of a representative of Central Government, a representative of concerned Municipal Corporation & a senior representative (preferably the Secretary in charge of Department of Municipal administration) of the State of Gujarat.

In the event of any Department or Railways owning a property changes the Agreement unilaterally or fails to reach settlement through Mediation Committee, the concerned Municipal Corporation could take such action as it deems fit by approaching Courts/Tribunals for reliefs.

The Municipal Corporations shall not resort to coercive steps (such as stoppage of services) nor resort to revenue recovery proceedings for recovery of service charges from UOI or its Departments.

The services payable by UOI shall not be more than the service charges paid by State Government for its properties. Wherever exemptions or concessions are granted to the properties belonging to the state government, the same shall also apply to the properties of Union of India.

(6) If Railways do not abide by the instructions of Ministry of Finance as contained in the 4 circulars dated 10.5.1954, 29.3.67, 28.5.1976 and 26.8.1986 and general consensus set out above, it is open to Municipal Corporation to take suitable action as is permissible in Law.

2. All State Governments have been requested to note the above orders of Supreme Court and advice their Urban Local Bodies in regulating the payment of service charges in respect of Central Government properties in terms of the above judgement. In this connection, it is stated that the arrangement mentioned in point (2) above of para 1 is specific to the State of Gujarat and State Governments have been requested to consider appropriate dispute resolution mechanism in respect of their States.

3. The above orders of Supreme Court are hereby brought to the notice of all Ministries/Departments of Central Government with the request to issue necessary instructions to the concerned authorities under their administrative control for suitable compliance with regard to regulating of service charges payable by UOI & its Departments to the Urban Local Bodies for their properties.

R. Sathyanarayanan

(R. Sathyanarayanan)
Under Secretary to the Government of India
Ph. 23061072

To

1. All Ministries/Departments of Central Government
2. DG(W), CPWD, MOUD.

Copy forwarded for kind information to:-

1. Sr.PPS to Secretary (UD)
2. P.S. to Addl. Secretary & all Jt. Secretaries of MOUD
3. P.S. to Director (LSG)/Dir.(UD)
4. Guard file/spares.

PROFORMA

Name of Authority / Department _____

Details of in Existance, New constructoins, additions,extentions, alterations, full or partial demolition carried out from _____ to _____

Sr. No.	Ward No.	Street No.	Locality	Description	Original Rateable Value	Area in Sq. Mtrs.	
						plot of land	construction
1	2	3	4	5	6	7	8

Rate per Sq. Mtrs.		Cost of Land	Cost of	Cost of Electrical	Total of Col.	9% of	Revised R.V.	Date of effect / Occupation	Remarks
Land	Construction	Land	Construction	Installation	11+12+13	Col. 14	Col. 6 + 15		
9	10	11	12	13	14	15	16	17	18

Signature of Authority
(Name/Designation)

Annexure D SCHEDULE G

(Section 191-E)

THEATRE TAX

The following Schedule has been amended as per Maharashtra Act No.XI of 2009 published in Government Gazette Extra Ordinary 24 of 13.04.2009.

Sr. No.	Type of Entertainment	Maximum Amount of Tax	Rate of Tax if payment for whole month is made within first five days of month
1	Air-conditioned Cinema Theatre	Rs.60/- per show	Rs.56.40/- per show
2	Non Air-conditioned Cinema Theatre	Rs.45/- per show	Rs.42.30/- per show
3	Drama concert variety entertainment or Tamasha	Rs.25/- per show	Rs.23.50/- per show
4	Circus and Carnivals	Rs.50/- per day	Rs.47.00/- per day
5	Any other entertainment	Rs.30/- per show or if there are no separate shows, Rs.30/- per day	Rs.28.20/- per show or if there are no separate shows Rs. 28.20/- per day

FORM A

THEATRE TAX

Returns to be submitted by persons liable to Theatre Tax under Section 191-H of the Act.

For the day_____

Week Ending_____ of _____

Month_____

1)Name of the Theatre, if any _____

2) Locality, Street No. _____

Street_____

3) Type of Entertainment

a) Air-conditioned Cinema Theater _____

b) Non Air-conditioned Cinema Theatre_____

c) ★Drama, Concert, Variety Entertainment or Tamasha_____

d) ★Circus and Carnival _____

e) Any other Entertainment_____

4) Name of person

liable to pay the tax - Proprietor / Manager _____

Person in-charge _____

5) Total No. of shows expected

to be shown during the ensuing day_____ of _____

Week ending of _____ of _____

Month_____

6) Amount of tax payable _____

★Score out the entries which do not pertain to you.

Signature of the person liable. NOT

TO BE FILLED IN BY THE ASSESSEE

Received Rs._____ Receipt No. and date _____

Supervisor (Theatre Tax) Cashier

Rates of Repair Cess from 01.01.1970 onwards.

Period	Category of Building	Rate		Owner's Share	Tenant's Share		Rate applicable after Repairs		Owner's Share	Tenant's Share	
From 01.01.1970 to 31.03.1974	A	25% of the R.V.		10% of the R.V.	15% of the R.V.		40% of the R.V.		10% of the R.V.	30% of the R.V.	
	B	20% of the R.V.		10% of the R.V.	10% of the R.V.		30% of the R.V.		10% of the R.V.	20% of the R.V.	
	C	15% of the R.V.		10% of the R.V.	5% of the R.V.		20% of the R.V.		10% of the R.V.	10% of the R.V.	
From 01.04.1974 to 31.03.1978	A	34% of the R.V.		10% of the R.V.	24% of the R.V.		58% of the R.V.		10% of the R.V.	48% of the R.V.	
	B	26% of the R.V.		10% of the R.V.	16% of the R.V.		42% of the R.V.		10% of the R.V.	32% of the R.V.	
	C	18% of the R.V.		10% of the R.V.	8% of the R.V.		26% of the R.V.		10% of the R.V.	16% of the R.V.	
From 01.04.1978 to 30.09.1980		Resi.	Non-Resi.	-	Resi.	Non-Resi.	Resi.	Non-Resi.	-	Resi.	Non-Resi.
	A	34% of the R.V.	58% of the R.V.	10% of the R.V.	24% of the R.V.	48% of the R.V.	58% of the R.V.	106% of the R.V.	10% of the R.V.	48% of the R.V.	96% of the R.V.
	B	26% of the R.V.	42% of the R.V.	10% of the R.V.	16% of the R.V.	32% of the R.V.	42% of the R.V.	74% of the R.V.	10% of the R.V.	32% of the R.V.	64% of the R.V.
	C	18% of the R.V.	26% of the R.V.	10% of the R.V.	8% of the R.V.	16% of the R.V.	26% of the R.V.	42% of the R.V.	10% of the R.V.	16% of the R.V.	32% of the R.V.

ANNEXURE E Continued

As per Maharashtra Housing and Area Development (Amendment) Ordinance, 1980

Rates of Repairs Cess from 01.10.1980 to 30.06.1983 continued.

Period	Particulars	Category of the Building	Rate		Owner's Share- Percentage of Rateable Value	Tenant's Share	
			Residential	Non-Residential		Residential Percentage of R.V.	Non-Residential Percentage of R.V.
From 01.10.1980 to 30.06.1983	1) Where a building is not structurally repaired (or is not deemed to be so repaired) by the Board.	A	34 %	58 %	10 %	24 %	48 %
		B	26 %	42 %	10 %	16 %	32 %
		C	18 %	26 %	10 %	8 %	16 %
	2)Where a building is structurally repaired (or is deemed to be so repaired) by the Board And						
	i) The Board has contributed towards the cost of repairs, at the rate upto Rs.120/- per square meter.	A	58 %	106 %	10 %	48 %	96 %
		B	42 %	74 %	10 %	32 %	64 %
		C	26 %	42 %	10 %	16 %	32 %
	ii) The Board has contributed towards the cost of repairs, at the rate exceeding Rs.120/- but not exceeding Rs.200/- per square meter.	A	90 %	170 %	10 %	80 %	160 %
		B	63 %	116 %	10 %	53 %	106 %
		C	37 %	64 %	10 %	27 %	54 %
From 01.07.1983 to 31.12.1986	1)Where a building is not structurally repaired (or is not deemed to be so repaired) by the Board.	A	46 %	82 %	10 %	36 %	72 %
		B	34 %	58 %	10 %	24 %	48 %
		C	22 %	34 %	10 %	12 %	24 %
	2)Where a building is structurally repaired (or is deemed to be so repaired) by the Board. And						
	i) The Board has contributed towards the cost of repairs, at the rate upto Rs.200/- per sq.	A	90 %	170 %	10 %	80 %	160 %
		B	63 %	116 %	10 %	53 %	106 %

	meter (the buildings structurally repaired by the Board Rs.120/-per square meter have been clubbed together with above).	C	37 %	64 %	10 %	27 %	54 %
	ii) The Board has contributed towards the cost of repairs at the rate exceeding R.200/- but not exceeding Rs.300/- per square meter.	A B C	130 % 90 % 50 %	250 % 170 % 90 %	10 % 10 % 10 %	120 % 80 % 40 %	240 % 160 % 80 %
From 01.01.1987 to 31.03.1994	1)Where a building is not structurally repaired (or is not deemed to be so repaired) by the Board.	A B C	58 % 42 % 26 %	106 % 74 % 42 %	10 % 10 % 10 %	48 % 32 % 16 %	96 % 64 % 32 %
	2)Where a building is structurally repaired or is deemed to be so repaired by the Board. And						
	i) The Board has contributed towards the cost of the repairs, at the rate upto Rs.300/- per square meter.	A B C	130 % 90 % 50 %	250 % 170 % 90 %	10 % 10 % 10 %	120 % 80 % 40 %	240 % 160 % 80 %
	ii) The Board has contributed towards the cost of the repairs, at the rate exceeding Rs.300/- per square meter but not exceeding Rs.500/- per square meter.	A B C	260 % 180 % 100 %	510 % 350 % 190 %	10 % 10 % 10 %	250 % 170 % 90 %	500 % 340 % 180 %
Period	Particulars	Category of the Building	Rate		Owner's Share- Percentage of Rateable Value	Tenant's Share	
			Residential	Non-Residential		Residential Percentage of R.V.	Non-Residential Percentage of R.V.
From 01.04.1994 onwards	1) Where a building is not structurally repaired (or is not deemed to be so repaired) by the Board.	A	87 %	164 %	10 %	77 %	154 %
		B	63 %	116 %	10 %	53 %	106 %
		C	39 %	68 %	10 %	29 %	58 %

	2) Where a building is structurally repaired (or is deemed to be so repaired) by the Board and —						
	i) The Board has contributed towards the cost of repairs, at the rate upto Rs.300/- per sq. meter.	A B C	195 % 135 % 75 %	380 % 260 % 140 %	10 % 10 % 10 %	185 % 125 % 65 %	370 % 250 % 130 %
	ii) The Board has contributed towards the cost of repairs, at the rate exceeding Rs.300/- per sq. meter but not exceeding Rs.500/- per sq. meter.	A B C	390 % 270 % 150 %	770 % 530 % 290 %	10 % 10 % 10 %	380 % 260 % 140 %	760 % 520 % 280 %
	iii) The Board has contributed towards the cost of repairs, at the rate exceeding Rs.500/- per sq. meter but not exceeding Rs.750/- per sq. meter.	A B C	585 % 405 % 225 %	1160 % 800 % 440 %	10 % 10 % 10 %	575 % 395 % 215 %	1150 % 790 % 430 %

NOTE: Where the board has contributed at the rates exceeding Rs.750/- upto Rs.1000/-, exceeding Rs.1000/- upto Rs.1200/- & Rs.1200/- upto Rs.2000/- per sq.mtrs. for structural repairs, the rates of Repair Cess leviable are not yet fixed by the State Government.

Annexure F

BRIHANMUMBAI MAHANAGARPALIKA

Statement showing the rates of Property Taxes including Government Taxes 2008-09

Rates of Taxes

Sr. No.	Nature of Tax	Provision As Per Act	Unmetered Water supply	Metered Water Supply	Minimum Limit % of R.V.	Maximum Limit % of R.V.		
			Residential % of R.V.	Non-Residential % of R.V.	Residential % of R.V.	Non-Residential % of R.V.		
1	General Tax	Section 140(c) of M.M.C. Act	26%	26%	26%	26%	8%	50%
2	Fire Tax	Section 140(c) of M.M.C. Act	4%	4%	4%	4%	1/8%	5%
3	Water Tax	Section 140 (a) (i) of M.M.C. Act	65%	130%	-	-	No Limit	No Limit
4	Water Benefit Tax	Section 140 (a) (ii) of M.M.C. Act	12.50%	25%	12.50%	25%	No Limit	No Limit
5	Sewerage Tax	Section 140 (b) (i) of M.M.C. Act	39%	78%	-	-	No Limit	No Limit
6	Sewerage Benefit Tax	Section 140 (b) (ii) of M.M.C. Act	7.50%	15%	7.50%	15%	No Limit	No Limit
7	Education Cess	Section 195 E of M.M.C. Act	12%	12%	12%	12%	No Limit	12%
8	State Education Cess	Section 4 of Maharashtra Education & EG (Cess) Act, 1962	6%	12%	6%	12%	No Limit	No Limit
9	Employment Guarantee Cess	Section 6A of Maharashtra Education & EG (Cess) Act, 1962	-	3%	-	3%	-	-
10	Tree Cess	Section 18 (1) of Maharashtra (Urban Areas) Preservation of Trees Act 1975	0.50%	0.50%	0.50%	0.50%	No Limit	1%
11	Street Tax	Section 195 G of M.M.C. Act	15%	15%	15%	15%	No Limit	15%
Total		187.50%	320.50%	83.50%	112.50%			

State Education Cess and Employment Guarantee Scheme Rates

Sr. No	Slab of Rateable Value	Rate of State Education Cess	Rate of Employment Guarantee Cess	
		Residential	Non-Residential	Non-Residential
1	Rs.1/- to Rs.74/-	Nil	Nil	Nil
2	Rs.75/- or more but not less than Rs.150/-	2%	4%	1%
3	More than Rs.150/- but less than Rs.300/-	3%	6%	1.50%
4	Rs.300/- or more but less than Rs.3,000/-	4%	8%	2%
5	Rs.3,000/- or more but less than Rs.6,000/-	5%	10%	2.50%
6	Rs.6,000/- or more	6%	12%	3%

Annexure F Continued

BRIHANMUMBAI MAHANAGARPALIKA

(Assessment & Collection Department)

RATES OF TAXATION FROM 1936-37 ONWARDS. Period	General Tax including Fire Tax @ % of the R.V.	Water Tax @ % of the R.V.	Water Benefit Tax @ % of the R.V.	Halalkhore Tax @ % of the R.V.	Sewerage Benefit Tax @ % of the R.V.	Education Cess
1.4.36 to 31.3.45	11-1/2%	3-3/4%	-	3%	-	-
1.4.45 to 31.3.46	12-1/2%	3-3/4%	-	3%	-	-
1.4.46 to 30.9.47	14-1/2%	3-3/4%	-	3%	-	-
1.10.47 to 31.3.52	14-1/2%	3-3/4%	-	3%	-	-
1.4.52 to 31.3.58	17-1/2%	3-3/4%	-	3%	-	-
1.4.58 to 31.3.59	17-1/2%	3-3/4%	-	3-1/2%	-	Introduced New tax from 1.4.58. On R.V. Rs.1/- to Rs.74/ = Nil. Rs.75/- to Rs.299/ = 1%. On R.V. Rs.300/- & above = 1-1/2%
1.4.59 to 31.3.63	19-3/4%	4-1/2%	-	3-1/2%	-	-do-
1.4.63 to 31.3.73	24-3/4%	4-1/2%	-	3-1/2%	-	On R.V. Rs.1/- to Rs.74/= Nil. On R.V.Rs.75/- to Rs.299/= 2%. On R.V. Rs.300/- & above =2-1/2%.
1.4.73 to 31.3.74	24-3/4%	7%	-	3-1/2%	-	-do-
1.4.74 to 31.3.75	24-3/4%	7-1/2%	3%	3 -1/2% (HalalkhoreTax named as Sewerage tax from 1.4.74)	2%	-do-
1.4.75 to 31.3.76	24-3/4%	7 -1/2%	3%	3-1/2%	2%	On R.V. Rs.1/-to Rs.74/- =1/2% On R.V. Rs.75/-to Rs. 299/- =2-1/2% On R.V. Rs.300/-to Rs.4999/- =3% On R.V. Rs.5000/-to Rs.9999/- =3-1/2%

						On R.V. Rs.10000/-& above - =4%		
1.4.76 to 17.4.83	25.50%	7%	5%	4%	3%	On R.V. Rs.1/-to Rs.74/- =1/2% On R.V. Rs.75/-to Rs. 299/- =2-1/2% On R.V. Rs.300/-to Rs.4999/- =3% On R.V. Rs.5000/- & above =5%		
18.4.83 to 4.4.87	25.50%	9%	6%	5%	4%	-do-		
5.4.87 to 31.3.88	25.50%	R-9% NR-15%	R-6% NR-10%	R-5% NR-8%	R-4% NR-16%	-do-		
1.4.88 to 31.3.93	25.50%	R-9% NR-15%	R-6% NR-10%	R-5% NR-8%	R-4% NR-16%	Introduced Tree Cess from 1.4.88 at 1/2% of R.V.		
Period	General Tax including Fire Tax @ % of the R.V.	Water Tax @ % of the R.V.	Water Benefit Tax @ % of the R.V.	Sewerage Tax @ % of the R.V.	Sewerage Benefit Tax @ % of the R.V.	Education Cess @ % of the R.V.	Tree Cess @ % of the R.V.	Street Tax @ % of the R.V.(Street tax introduced from 1.4.93)
1.4.93 to 31.3.94	28%	R 20% NR 45%	R-10% NR 20%	R-10% NR 15%	R-6% NR 12%	5%	0.5%	5%
1.4.94 to 31.3.96	28%	R-26% NR 55%	R-10% NR 20%	R-13% NR 20%	R- 6% NR 12%	5%	0.5%	5%
1.4.96 to 31.3.97	28%	R-50% NR 100%	R-12.50% NR 25%	R-25% NR 50%	R- 6.25% NR12.50%	5%	0.5%	5%
1.4.97 onwards	28.50%	R-50% NR 100%	R-12.50% NR 25%	R-25% NR 50%	R- 6.25% NR12.50%	8.5%	0.5%	5%
1.4.98 to 31.3.2000	28.50%	R-50% NR 100%	R-12.50% NR 25%	R-25% NR 50%	R- 6.25% NR 12.50%	8.5%	0.5%	15%
1.4.2000 onwards	30%	R-65% NR 130%	R-12.50% NR 25%	R-39% NR 78%	R- 7.50% NR 15%	12%	0.5%	15%

RATES URBAN IMMOVABLE PROPERTY TAX

	Rates for Rateable Values below 500/-	Rates for Rateable Values from Rs.500/- to Rs. 2,000/-	Rates for Rateable Values above Rs. 2,000/-
1.4.39 to 31.3.41	Nil	5%	10%
1.4.41 to 31.3.42	Nil	4%	8%
1.4.42 to 31.3.44	Nil	3.5/6%	7.2/3%
1.4.44 to 30.9.52	Nil	3.1/2%	7%
1.10.52 to 31.3.63	Nil	2.1/2%	5% (Urban Immovable Property Tax abolished from 1.4.63)

STATE EDUCATION CESS — NEW TAX FROM 1.10.62

1.10.62 to 30.9.67	On R.V.	Re.1/- to Rs.74/- Rs. 75/- onwards.	Nil. 2%
1.10.67 to 31.3.74	On R.V.	Re.1/- to Rs.74/- Rs. 75/- to Rs.299/- Rs.300/- and above.	Nil. 2% 2-1/2%

1/4/1974 onwards :

Slabs of annual letting value	In respect of land or building used or intended to be used for residential purpose.	In respect of land or building used or intended to be used non-residential purpose.
i) On R.V. Re. 1/- to Rs. 74/-	Nil	Nil
ii) Rs.75/- or more but not more than Rs.150/-	2 % of the annual letting value.	4 % of the annual letting value.
iii) More than Rs.150/- but less than Rs.300/-	3 % of the annual letting value.	6 % of the annual letting value.
iv) Rs.300/- or more but less than Rs.3,000/-	4 % of the annual letting value.	8 % of the annual letting value.
v) Rs.3,000/- or more but less than Rs.6,000/-	5 % of the annual letting value.	10 % of the annual letting value.
Rs. 6,000/- or more	6 % of the annual letting value.	12 % of the annual letting value.

Explanation – 1 : Lands or buildings used for non-residential purpose means lands or buildings used or intended to be used for non-residential purpose for profit.

Explanation – 2 : Where any land or building is used partly for residential purpose and partly for non-residential purpose and the annual letting value of the portion used

for non-residential purpose is not less than 50 % of the total annual letting value of the land or building, as the case may be, the entire land or building

shall be taxed as it is used for non-residential purpose and in any other case the entire land or building shall be taxed as it is used for residential purpose.

Note : The explanation No.1 and 2 are applicable for the period from 1.4.1974 to 31.3.1975 only.

Explanation – 3 : Residential portion of the property is charged at residential rate and non-residential portion at non-residential rate as per above table.
The rates applicable, however, depends on the total R.V. of the property.
Note : The explanation is applicable from 1.4.1975 onwards.

ADDITIONAL STATE EDUCATION CESS FROM 1/10/1971

From : 1/10/1971 on R.V.	Re.1/- to Rs.74/-	Nil
-II-	Rs.75/- to Rs.299/-	1%
-II-	Rs.300/- & above.	1-1/4%

(Additional State Education Cess discontinued from 1/4/1974)

Employment Guarantee Cess : is levied on the non-residential portion of the property and following rates depending on the total R.V. of the property.

1/4/1974 onwards :

TOTAL R.V. OF THE PROPERTY :

(1)	Rs.75/- or more but not more than Rs.150/-	-	1.00%
(2)	More than Rs.150/- but less than Rs.300/-	-	1.5%
(3)	Rs.300/- or more but less than Rs.3,000/-	-	2.0%
(4)	Rs.3,000/- or more but less than Rs.6,000/-	-	2.5%
(5)	Rs. 6,000/- or more	-	3.0%

N.B. : Revised rates of Notice of Demand Fee under Section 202 of the B.M.C. Act, effective from 1.4.1996 to 31.3.2010 are as under :-

Bill Amount Due	Notice Fee
Upto Rs.99/-	Rs.10/-
Rs.100/- to 199/-	Rs.20/-
Rs.200/- to 399/-	Rs.30/-
Rs.300/- to 399/-	Rs.40/-
Rs.400/- & above	Rs.50/-